

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #15	CCRB Case #: 202006271	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/30/2020 3:47 AM	Location of Incident: 2402 86th Street; 62nd Precinct stationhouse	Precinct: 62	18 Mo. SOL 2/28/2022	EO SOL 5/4/2022	
Date/Time CV Reported Sun, 08/30/2020 5:46 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/15/2020 9:49 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Frank Cipriani	00000	941563	062 PCT
2. SGT Heriberto Hernandez	01584	932167	062 PCT
3. POM Dongchul Kim	01609	938770	062 PCT
4. Officers			062 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Kelly Espinoza	24971	967055	062 PCT
2. POM Luis Mirelis-Cruz	22707	968643	062 PCT
3. POM Steven Fiorenza	27533	966057	062 PCT
4. POM Mark Kulishevskiy	21334	965248	062 PCT
5. POM Kamal Rustamov	12491	956222	062 PCT
6. POM Nicholas Scorie	25767	969360	062 PCT
7. POF Jaleesa Arrington	8342	968244	062 PCT
8. POF Olivia Wiggins	28154	967392	062 PCT
9. POM Christopher Kerstiens	20725	958752	062 PCT
10. POM Anthony Villacis	19084	962860	062 PCT
11. SGT Ilya Dimantov	04423	942775	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Heriberto Hernandez	Discourtesy: At 2402 86th Street in Brooklyn, Sergeant Heriberto Hernandez spoke discourteously to § 87(2)(b)	
B.SGT Heriberto Hernandez	Abuse: At 2402 86th Street in Brooklyn, Sergeant Heriberto Hernandez threatened to issue summons to § 87(2)(b)	
C.SGT Heriberto Hernandez	Abuse: At 2402 86th Street in Brooklyn, Sergeant Heriberto Hernandez threatened § 87(2)(b) with the use of force.	

Officer(s)	Allegation	Investigator Recommendation
D. Officers	Abuse: At 2402 86th Street in Brooklyn, officers strip-searched § 87(2)(b)	
E.LT Frank Cipriani	Abuse: At 2402 86th Street in Brooklyn, Lieutenant Frank Cipriani refused to provide his name to § 87(2)(b)	
F.LT Frank Cipriani	Abuse: At 2402 86th Street in Brooklyn, Lieutenant Frank Cipriani refused to provide his shield number to § 87(2)(b)	
G. Officers	Abuse: At the 62nd Precinct stationhouse, officers strip-searched § 87(2)(b)	
H.POM Dongchul Kim	Force: At the 62nd Precinct stationhouse, Police Officer Dongchul Kim used physical force against § 87(2)(b)	
I.LT Frank Cipriani	Discourtesy: At the 62nd Precinct stationhouse, Lieutenant Frank Cipriani spoke discourteously to § 87(2)(b)	
J.SGT Heriberto Hernandez	Discourtesy: At the 62nd Precinct stationhouse, Sergeant Heriberto Hernandez spoke discourteously to § 87(2)(b)	

Case Summary

On August 30, 2020, Sgt. Ilya Dimantov of the 62nd Precinct filed this complaint with IAB on behalf of a prisoner, § 87(2)(b). On September 15, 2020, the complaint was forwarded to the CCRB via IAB log #2020-20919.

At approximately 3:47 a.m. on August 30, 2020, § 87(2)(b) got into a dispute with the owner of a restaurant located at 2402 86th Street in Brooklyn. When the owner called 911, several officers from the 62nd Precinct responded, including Lieutenant Frank Cipriani, Sergeant Heriberto Hernandez and Police Officer Dongchul Kim. The officers told § 87(2)(b) to leave, warning him that he would be arrested if he came back. § 87(2)(b) walked away, but then came back a few minutes later. He was holding a glass bottle. Sergeant Hernandez allegedly told § 87(2)(b) “You can’t fucking drink here” (**Allegation A: Discourtesy – Word**, § 87(2)(g)). He also allegedly threatened to issue him a summons for drinking (**Allegation B: Abuse of Authority – Threat of summons**, § 87(2)(g)). Sergeant Hernandez told § 87(2)(b) “*Yo te rompo la cara*,” which means “I will break your face” in Spanish (**Allegation C: Abuse of Authority – Threat of force**, § 87(2)(g)). When § 87(2)(b) refused to leave, Lieutenant Cipriani and Sergeant Hernandez decided to arrest him for disorderly conduct. The officers placed § 87(2)(b) in handcuffs. Several officers then allegedly searched him by reaching their hands inside his underwear (**Allegation D: Abuse of Authority – Strip search**, § 87(2)(g)). § 87(2)(b) repeatedly asked Lieutenant Cipriani for his name and shield number. Lieutenant Cipriani did not respond to these requests (**Allegation E: Abuse of Authority – Refusal to provide name**, § 87(2)(g); **Allegation F: Abuse of Authority – Refusal to provide shield number**, § 87(2)(g)).

The officers then transported § 87(2)(b) to the 62nd Precinct stationhouse for arrest processing. There, multiple officers then allegedly reached into § 87(2)(b)'s underwear again (**Allegation G: Abuse of Authority – Strip search**, § 87(2)(g)). Police Officer Kim also allegedly pushed § 87(2)(b) down against a table (**Allegation H: Force – Physical force**, § 87(2)(g)). Lieutenant Cipriani and Sergeant Hernandez allegedly cursed repeatedly at § 87(2)(b) while he was at the stationhouse (**Allegations I and J: Discourtesy – Word**, § 87(2)(g)).

The officers then placed § 87(2)(b) in a holding cell. Later that night, § 87(2)(b) was transported to § 87(2)(b), where he was treated for a dislocated shoulder. § 87(2)(b) was ultimately charged with § 87(2)(b) (Board Review #01).

The investigation obtained 36 clips of body-worn camera (BWC) footage from this incident. The videos are attached in IA #51 (Board Review #02) and summarized in IA #57 (Board Review #03). No other videos were found for this incident.

§ 87(2)(a), § 87(2)(b), § 87(2)(g)

Findings and Recommendations

Allegation (A) Discourtesy: At 2402 86th Street in Brooklyn, Sergeant Heriberto Hernandez spoke discourteously to § 87(2)(b)

Allegation (B) Abuse of Authority: At 2402 86th Street in Brooklyn, Sergeant Heriberto Hernandez threatened to issue summons to § 87(2)(b)

§ 87(2)(b) was interviewed by the CCRB on September 23, 2020. Lieutenant Cipriani was interviewed by the CCRB on June 29, 2021. Sergeant Hernandez was interviewed by the CCRB on September 1, 2021. Police Officer Kim was interviewed at the CCRB on September 22, 2021.

It is undisputed that § 87(2)(b) got into a dispute at a restaurant located at 2402 86th Street in Brooklyn. He was not armed. Employees at the restaurant called 911 and reported that a customer was threatening to shoot somebody (Board Review #04-05). Several officers responded to the 911 call, including Sergeant Hernandez. When the officers arrived, they realized that § 87(2)(b) was not armed. Sergeant Hernandez told § 87(2)(b) to leave. Several unidentified friends of his tried to pull § 87(2)(b) away, but he refused to leave. § 87(2)(b) then sat down on a bench located across the street from the restaurant. § 87(2)(b) was drinking from a glass bottle at the time. Sergeant Hernandez and the other officers approached him. Sergeant Hernandez again told § 87(2)(b) to leave. § 87(2)(b) did not leave. The officers then arrested him and charged him with § 87(2)(b) (Board Review #01). § 87(2)(b) was not issued any summonses or charged with an open container violation.

§ 87(2)(b) stated that the bottle contained carbonated spring water. He did note, however, that it looks similar to a beer bottle. When Sergeant Hernandez approached § 87(2)(b) at the bench, he stated, “You can’t fucking drink here.” He also stated, “I could write you a ticket!”

Sergeant Hernandez confirmed that he ordered § 87(2)(b) to leave the location several times, and that § 87(2)(b) ignored him. § 87(2)(b) was holding a bottle of Heineken beer. Sergeant Hernandez believed that § 87(2)(b) was intoxicated because his breath smelled of alcohol, because he was uncooperative with the police, and because he ignored his friends when they tried to get him to leave. Sergeant Hernandez did not recall telling § 87(2)(b) at any point, “You can’t fucking drink here,” or, “I could write you a ticket.” He did not recall using profanity towards § 87(2)(b) at any time. He did not recall telling § 87(2)(b) that he would be issued a summons for any reason.

Lieutenant Cipriani and Police Officer Kim stated that they did not recall any officers using profanity towards § 87(2)(b) or threatening to issue § 87(2)(b) a summons for any reason. Lieutenant Cipriani stated that a bouncer from the restaurant warned him that § 87(2)(b) was intoxicated. Based on this warning and § 87(2)(b)’s uncooperative behavior, he suspected that § 87(2)(b) was intoxicated. Police Officer Kim did not recall if he suspected § 87(2)(b) of being intoxicated during the incident.

Several clips of BWC footage recorded during this incident are attached in IA #51 (Board Review #02). The first ten videos depict various officers, including Sergeant Hernandez, responding to 2402 86th Street in response to the initial report of a dispute. The officers encounter § 87(2)(b) outside. He is standing in the street and shouting at several civilians. Sergeant Hernandez accuses him of being intoxicated and tells him several times to leave. § 87(2)(b)’s friends pull him away from the restaurant. Sergeant Hernandez warns § 87(2)(b)’s friends that § 87(2)(b) will be arrested if he returns. Sergeant Hernandez and the other officers end their BWC recordings when

§ 87(2)(b)'s friends remove him from the location. Approximately one minute after the officers have all turned off their BWC recordings, they begin activating their cameras again. The next eleven videos depict § 87(2)(b) returning to the location and sitting on a bench across the street from 2402 86th Street. He is holding a glass bottle. Sergeant Hernandez and Lieutenant Cipriani are already speaking to § 87(2)(b) at the start of these subsequent videos. Because their conversation with § 87(2)(b) began before the BWC recordings, it is unclear what either officer said to § 87(2)(b) between the two sets of recordings. Neither Sergeant Hernandez nor any other officer is heard using profanity towards § 87(2)(b) or threatening to issue him a summons.

The investigation was unable to determine whether Sergeant Hernandez told § 87(2)(b) “You can’t fucking drink here,” or, “I could write you a ticket.” While he is not recorded making either of these statements on the BWC footage, there is a gap in the footage between when § 87(2)(b)'s friends first pulled him away from 2402 86th Street and when § 87(2)(b) return to the location and sat on the bench. The BWC does indicate that Lieutenant Cipriani and Sergeant Hernandez spoke to § 87(2)(b) during this period. § 87(2)(g)

The recordings did capture Sergeant Hernandez warning § 87(2)(b)'s friends that he would be arrested if he tried to return to 2402 86th Street after leaving. § 87(2)(g)

§ 87(2)(g)

Allegation (C) Abuse of Authority: At 2402 86th Street in Brooklyn, Sergeant Heriberto Hernandez threatened § 87(2)(b) with the use of force.

It is undisputed that § 87(2)(b) held a glass bottle when he returned to 2402 86th Street and sat on the bench. Sergeant Hernandez grabbed the bottle from § 87(2)(b)'s hand and threw it to the ground. Sergeant Hernandez then spoke to § 87(2)(b) in Spanish.

§ 87(2)(b) stated that his bottle contained water. When Sergeant Hernandez took the bottle, it landed on the ground next to him, shattering. § 87(2)(b) does not speak Spanish. He did not know what Sergeant Hernandez said to him but assumed that he was ordering him to go home.

Sergeant Hernandez stated that he believed § 87(2)(b) to be intoxicated because his breath smelled of alcohol, because he shouted and cursed at him and the other officers, and because he refused to leave the area when ordered. Due to § 87(2)(b)'s unruly behavior, he feared that § 87(2)(b) might strike him with his bottle. He therefore took the bottle from § 87(2)(b) to remove any threat it posed. Once he had the bottle, he tossed it aside. He denied breaking it. Sergeant Hernandez then told § 87(2)(b) in Spanish, “*Si tu pegas, yo te rompo la cara.*” He initially stated that this sentence translates to “If you hit me, I will hit you in the face.” He explained that he wanted to communicate to § 87(2)(b) that he would return in kind any force that was used against him. When asked if the phrase “*yo te rompo la cara*” directly translates to “I will break your face,” however, Sergeant Hernandez replied that it did.

Lieutenant Cipriani also suspected that § 87(2)(b) was intoxicated because § 87(2)(b) was

acting in a belligerent manner and because the bouncer from 2406 86th Street told him that § 87(2)(b) had been drinking. He recalled Sergeant Hernandez throwing § 87(2)(b)'s bottle, but did not recall it breaking. He does not speak Spanish and did not know what Sergeant Hernandez told § 87(2)(b). Police Officer Kim did not recall suspecting that § 87(2)(b) was intoxicated. He did not recall seeing § 87(2)(b) holding a bottle or Sergeant Hernandez throwing a bottle. He also does not speak Spanish.

Sergeant Hernandez's conversation with § 87(2)(b) is recorded in the second of his two BWC recordings, which is attached in IA #51 (Board Review #02). 0:55 into the recording, § 87(2)(b) sits down on the bench. Sergeant Hernandez takes § 87(2)(b)'s bottle and throws it aside. The footage does not show what happens to the bottle after Sergeant Hernandez throws it. It does not show if the glass shatters. Sergeant Hernandez then triggers his BWC, activating the sound. § 87(2)(b) asks Sergeant Hernandez, "Can you please beat me up? Can you beat me up? Please, beat me up." Sergeant Hernandez shouts, "Yo te rompo la cara." § 87(2)(b) replies, "Yo, we're solid. Hit me, hit me."

Another view of this interaction is shown in Police Officer Steven Fiorenza's second BWC recording, also attached in IA #51 (Board Review #02). At 0:15 into this recording, Sergeant Hernandez grabs § 87(2)(b)'s bottle and throws it aside. The bottle rolls underneath a parked vehicle but does not shatter.

NYPD Patrol Guide procedure 221-01 states that officers may use physical force when it is reasonable to ensure the safety of a member of service or to place a person in custody. Any use of force must be reasonable under the circumstances. Factors to consider when determining whether a given use of force is reasonable include the nature of the crime the subject is accused of, the actions taken by the subject, the immediacy of the perceived threat or harm the subject poses, and the number of subjects in comparison to the number of officers present (Board Review #06).

§ 87(2)(g)
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Allegation (D) Abuse of Authority – At 2402 86th Street in Brooklyn, Officers strip-searched

§ 87(2)(b)

It is undisputed that the officers arrested § 87(2)(b) after Sergeant Hernandez threatened to use force against him. The officers placed him in handcuffs and searched him.

§ 87(2)(b) stated that once he was in handcuffs, five or six officers, including Lieutenant Cipriani and Sergeant Hernandez, reached inside his pants pockets and removed several items, including his wallet, a folding knife, headphones, a cigarette lighter, various small crystals, cash and a passport. The officers then reached inside his waistband and ran their hands around between his pants and his underwear. § 87(2)(b), § 87(2)(a)

Sergeant Hernandez stated that he searched § 87(2)(b) immediately after his arrest. He explained that he did so because it is standard procedure to search prisoners' pockets before they are transported to the stationhouse for arrest processing. He reached into § 87(2)(b)'s pants pockets, removing his wallet and phone. He did not see any other officers search § 87(2)(b). Sergeant Hernandez denied that he reached inside § 87(2)(b)'s pants or underwear § 87(2)(b). § 87(2)(a) He denied seeing any other officers do so.

Lieutenant Cipriani also stated that § 87(2)(b) was searched as a matter of procedure after his arrest to prepare him for transport. He did not recall which officers conducted the search. He did not recall searching § 87(2)(b) himself. During the search, the search covered § 87(2)(b)'s entire body, including his pants pockets and waistband. Lieutenant Cipriani denied seeing any officers reach into § 87(2)(b)'s waistband, reach into § 87(2)(b)'s underwear § 87(2)(b). § 87(2)(a)

Police Officer Kim did not recall if any officers searched § 87(2)(b) after his arrest but noted that it is standard procedure to search all prisoners being taken into custody. He did not recall seeing any officers reach into § 87(2)(b)'s pants or make contact with § 87(2)(b)'s genitals or buttocks.

Several of the BWC videos attached in IA #51 depict § 87(2)(b)'s arrest (Board Review #02). Videos recorded by Police Officer Fiorenza (the second of three he recorded), Police Officer Mark Kulishevskiy (the second of five he recorded) and Sergeant Hernandez (the second of two he recorded) all depict officers searching § 87(2)(b) after he was handcuffed. Police Officer Fiorenza's and Sergeant Hernandez's videos show that Sergeant Hernandez reached into § 87(2)(b)'s front-right pants pocket, while Police Officer Kulishevskiy's video shows that he and Sergeant Hernandez reached into § 87(2)(b)'s front-left pants pocket. No other officers are seen participating in the search on the other BWC videos. Neither Sergeant Hernandez, Police Officer Kulishevskiy nor any other officers are seen reaching inside § 87(2)(b)'s waistband, placing their hands in his underwear, § 87(2)(b) on any of the videos.

§ 87(2)(g)

Allegation (E) Abuse of Authority: At 2402 86th Street in Brooklyn, Lieutenant Frank Cipriani refused to provide his name to § 87(2)(b)

Allegation (F) Abuse of Authority: At 2402 86th Street in Brooklyn, Lieutenant Frank Cipriani refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) made no mention in his sworn statement about asking any officers, including

Lieutenant Cipriani, for their names or shield numbers. He did refer to Lieutenant Cipriani as a “deputy” several times during his statement.

Lieutenant Cipriani recorded two clips of BWC footage during this incident. Both are attached in IA #51 (Board Review #02). The second clip covers § 87(2)(b) s arrest after he returned to the restaurant. At 1:20 into this recording, § 87(2)(b) is being handcuffed while held against the side of the parked car. He looks at Lieutenant Cipriani and repeatedly asks him for both his name and shield number. He calls Lieutenant Cipriani “Deputy” and “Dep.” § 87(2)(b) also states, “You make \$250,000 a year, I’m coming for your money. I’m coming for your quarter-million dollars you make a year.” Lieutenant Cipriani replies, “Stop running your mouth. Shut up. No, that’s enough. Oh my God. Alright, pal, alright.” He does not provide any of his identifying information. He does not inform § 87(2)(b) that lieutenants do not have shield numbers.

Lieutenant Cipriani confirmed that § 87(2)(b) repeatedly called him a “deputy” during this incident. While § 87(2)(b) was being handcuffed, § 87(2)(b) asked him directly for his name and shield number. Lieutenant Cipriani did not respond at the time because he thought that § 87(2)(b) would not be able to recall the information due to his apparently intoxicated state and his inability to write the information down while he was handcuffed. Lieutenant Cipriani also assumed that his information would be recorded for § 87(2)(b) on the arrest paperwork. As such, he never provided his name. Lieutenant Cipriani does not have a shield number due to his rank. He did not inform § 87(2)(b) of this fact.

NYPD Patrol Guide procedure 203-09 states that officers must clearly state their rank, name, shield number and command, or otherwise provide them to, anyone who requests it (Board Review #07).

§ 87(2)(g)

Allegation (G) Abuse of Authority: At the 62nd Precinct stationhouse, officers strip-searched

§ 87(2)(b)

§ 87(2)(b) stated that while officers held him down by the front desk, several officers searched him by reaching into his pants pockets. These officers also reached inside his pants and ran their hands around his waistband, between his pants and his underwear. The officers also reached inside his underwear. § 87(2)(b) initially stated that the officers reached “in [his] butt” and conducted a “cavity search.” When asked directly if the officers entered his anus, however, § 87(2)(b) stated that they only placed their hands between his buttocks. § 87(2)(b) could not tell which of the officers reached inside his underwear.

Lieutenant Cipriani, Sergeant Hernandez and Police Officer Kim stated that § 87(2)(b) was searched at the front desk because it is standard procedure to search all incoming prisoners. Lieutenant Cipriani stated that Police Officer Kim and Police Officer Mirelis-Cruz conducted the search, while Police Officer Kim stated that Police Officer Mirelis-Cruz conducted it by himself. Sergeant Hernandez did not see which officer conducted the search. All three officers denied that they reached inside § 87(2)(b) s underwear § 87(2)(b)

They were not aware of any other officers doing so. The officers denied that § 87(2)(b) was strip-searched at the stationhouse.

BWC footage from five different officers covered the portion of the incident between § 87(2)(b)'s arrival at the stationhouse and his lodging in the holding cells. The footage is attached in IA #51 (Board Review #02). Police Officer Mirelis-Cruz's and Police Officer Espinoza's BWC videos (the second of three that each recorded) show § 87(2)(b)'s arrival at the front desk. They place their BWCs on the front desk and point them towards § 87(2)(b). At 9:05 into both recordings, Police Officer Mirelis-Cruz reaches into § 87(2)(b)'s pockets and produces his wallet. He also removes several necklaces § 87(2)(b) is wearing. Neither Police Officer Mirelis-Cruz nor any other officer reaches into § 87(2)(b)'s waistband or underwear.

§ 87(2)(g)

Allegation (H) Force: At the 62nd Precinct stationhouse, Police Officer Dongchul Kim used physical force against § 87(2)(b)

It is undisputed that after § 87(2)(b)'s arrest, he was transported to the 62nd Precinct stationhouse and presented at the front desk.

§ 87(2)(b) stated that when he arrived at the stationhouse, several officers, including Sergeant Hernandez and Lieutenant Cipriani, escorted him to a wooden table positioned next to the front desk. There, two officers pushed him face-down on the table, holding him in place with their forearms. Other officers held § 87(2)(b)'s legs in place. Because § 87(2)(b)'s face was held down against the table, he could not tell which officers were touching him.

Police Officer Kim stated that he did not recall himself or any other officers using any sort of physical force against § 87(2)(b) when he was at the stationhouse, including pushing § 87(2)(b) against a surface. Sergeant Hernandez and Lieutenant Cipriani denied seeing any officer push § 87(2)(b) against a surface or otherwise use force. Lieutenant Cipriani stated that § 87(2)(b) brought his own head down against the desk several times while Police Officer Kim and Police Officer Mirelis-Cruz were holding his arms. It appeared to Lieutenant Cipriani that § 87(2)(b) struck his own head on the desk to make it appear as if officers were using force against him.

One of Police Officer Mirelis-Cruz's BWC recordings, the second of three that he recorded during the incident, provides the clearest view of this portion of the incident. It is attached in IA #51 (Board Review #02). When § 87(2)(b) arrives at the front desk, Police Officer Mirelis-Cruz places his BWC on the desk and faces it towards § 87(2)(b). At 11:00 into his recording, Lieutenant Cipriani, Police Officer Mirelis-Cruz and Police Officer Kim move § 87(2)(b) up against the side of the front desk. They push on his back to lean him forward, but § 87(2)(b)'s torso is still seen to be angled upwards, away from the desk. Police Officer Kim holds § 87(2)(b)'s left arm with one hand. He also has his left hand on § 87(2)(b)'s left shoulder. At 11:45 into the recording, § 87(2)(b)'s torso swings down towards the desk. A thumping sound is heard. Police Officer Fiorenza then turns the BWC to face directly towards § 87(2)(b)'s face. Police Officer Kim is still holding § 87(2)(b) by his left shoulder and arm. Police Officer Mirelis-Cruz holds § 87(2)(b)'s right arm. No other officers are touching § 87(2)(b). A voice tells § 87(2)(b) that everything he does is being recorded. § 87(2)(b)'s head then

swings down twice more, striking the desk. § 87(2)(b) accuses Police Officer Kim of “putting force” on him. Police Officer Kim tells § 87(2)(b) to stay still. § 87(2)(b) replies that he is not moving. He then states, “Come on, baby, let’s get some money.”

Police Officer Espinoza’s BWC, the second of three she recorded, provides a similar view as Police Officer Mirelis-Cruz’s. It is also attached in IA #51 (Board Review #02). Her camera is also positioned on the front desk at the time. At 11:55 into the recording, Police Officer Fiorenza turns it towards § 87(2)(b) where Police Officer Kim stands with his hand on § 87(2)(b)’s shoulder. It shows § 87(2)(b)’s head swinging down towards the desk.

Police Officer Kulishevkiy’s video, the third of five that he recorded, also provides a view of this encounter. It is also attached in IA #51 (Board Review #02). At 0:45 into the recording, Police Officer Kim and Police Officer Mirelis-Cruz stand next to § 87(2)(b) by the desk. They hold him by his arms, with Police Officer Kim also placing a hand on § 87(2)(b)’s left shoulder. The camera is initially silent. When § 87(2)(b)’s torso swings towards the desk, Police Officer Kulishevski activates the BWC.

Police Officer Kim was shown Police Officer Mirelis-Cruz’s BWC recording of this portion of the incident. He stated that he recalled the incident after viewing the footage. He stated that § 87(2)(b) struck his own head against the desk. He denied that he pushed § 87(2)(b) to the desk.

§ 87(2)(g)
First, the video footage indicates that while Police Officer Kim did have a hand on § 87(2)(b)’s back at the time, he did not use it to push § 87(2)(b) down onto the desk. Police Officer Kim holds § 87(2)(b) in place, but his contact is loose. Neither his arm nor his shoulder tense up when § 87(2)(b)’s body moves down.

Second, BWC footage shows that § 87(2)(b) attempted to goad officers into committing misconduct against him during the incident so that he could file a lawsuit against them. As discussed earlier, § 87(2)(b) is recorded on Sergeant Hernandez’s BWC footage repeatedly stating, “Can you please beat me up?” and, “Hit me.” When Lieutenant Cipriani has § 87(2)(b) arrested, § 87(2)(b) warns that he is going to take Lieutenant Cipriani’s salary. Immediately after § 87(2)(b)’s body strikes the desk, he tells the officers, “Come on, baby, let’s get some money.”

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation (I) Discourtesy: At the 62nd Precinct stationhouse, Lieutenant Frank Cipriani spoke discourteously to § 87(2)(b)

Allegation (J) Discourtesy: At the 62nd Precinct stationhouse, Sergeant Heriberto Hernandez spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that while he was being searched by the front desk at the stationhouse, Lieutenant Cipriani and Sergeant Hernandez both repeatedly cursed at him. The officers made several statements, such as, “You’re going to get fucking locked up,” and, “You’re a piece of crap.”

Lieutenant Cipriani, Sergeant Hernandez and Police Officer Kim all stated that they did not recall hearing any officers use profanity towards § 87(2)(b) at the stationhouse.

BWC footage from five different officers covered the portion of the incident between § 87(2)(b) s arrival at the stationhouse and his lodging in the holding cells. The footage is attached in IA #51 (Board Review #02). Review of these videos found that Lieutenant Cipriani and Sergeant Hernandez were both present during this time. Neither they nor any other officers, however, are heard using profanity towards § 87(2)(b) during this time.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one previous CCRB complaint and has been named as a victim in one allegation (Board Review #08):
 - § 87(2)(b)
- Sergeant Hernandez has been a member of the service for 18 years and has been identified as a subject in 11 complaints and 21 allegations, two of which were substantiated:
 - 200907980 involved a substantiated allegation of nightstick as club. The Board recommended that he receive charges. The NYPD imposed a penalty of five vacation days.
 - 201903480 involved s substantiated allegation of failure to provide RTKA card. The Board recommended that he receive instructions. The NYPD imposed instructions.
 - § 87(2)(g)
- Lieutenant Cipriani has been a member of the service for 15 years and has been identified as a subject in four previous CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Kim has been a member of the service for 16 years and this is the first CCRB in which he has been identified as a subject.

Mediation, Civil and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Investigator:	<u>Owen Godshall</u>	<u>Inv. Owen Godshall</u>	<u>10/5/21</u>
	Signature	Print Title & Name	Date
Squad Leader:	<u></u>	<u>IM Simon Wang</u>	<u>10/07/21</u>
	Signature	Print Title & Name	Date
Reviewer:	<u> </u>	<u> </u>	<u> </u>
	Signature	Print Title & Name	Date